

25STCV10411 25STCV10411

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV10411 Hearing Date: August 5, 2026 Dept: 510

No. 3 – Intellectual Property v.

Hyera An, et al.

Plaintiff

Intellectual Property's Request for Default Judgment

Plaintiff Intellectual

Property requests court judgment by default against Defendants Hyera An and Anthony An. Plaintiff's application for default judgment has several defects.

Amount of Damages

Plaintiff presents

insufficient evidence showing he is entitled to \$37,800 under the parties' residential listing agreement. "Even when the allegations of a complaint do support the judgment a plaintiff seeks, he is not automatically entitled to entry of that judgment by the court, simply because the defendant defaulted.

Instead, it is incumbent upon the plaintiff to prove up his damages, with actual evidence." (Kim v. Westmoore

Partners, Inc. (2011) 201 Cal.App.4th 267, 272.) "When determining if the evidence at the [default] prove-up hearing supports the requested damages, the court's role is serious, substantive, and often complicated." (LCPFV, LLC v. Somatdary Inc. (2024) 106 Cal.App.5th 743, 754.)

Here, the listing price

of the property according to the contract is \$575,000. The agreement provides that Plaintiff, as Defendants' broker, is due commission based on the following structure: "Commission compensation to the broker shall be 3% of the purchase

price if the property is sold 'AS IS' to the tenant, or 5% if the Broker represents a buyer and the seller, or 6% if the Broker represents only the seller and there is a cooperating broker." (Ex. 1, at p. 1.) Plaintiff does not specify which percentage he is due. Even assuming Plaintiff is due the highest 6% commission, this only amounts to \$34,500, not \$37,800. Plaintiff should clarify this in any renewed request for default judgment. If a different amount of damages is sought, the pre-judgment interest will need to be re-calculated.

Excessive Attorney Fees

Plaintiff also seeks excessive attorney fees. Attorney fees for a default judgment are generally limited to a specified schedule based on the amount of damages. (Local Rules 3.207(a), 3.214(a).) A plaintiff may recover "a fee greater than listed in the [default] schedule because of extraordinary services." (Rule 3.214(d).) Plaintiff's proposed judgment includes a request for \$35,000 in attorney fees. That is far greater than the schedule, which provides for attorney fees of "\$690 plus 3% of the excess over \$10,000" for judgments between \$10,000.01 to \$50,000. (Rule 3.214(a).) In addition, while Plaintiff claims counsel submitted a declaration supporting this fee award, no such declaration was submitted to the Court. Plaintiff does not show extraordinary services justifying a greater fee.

Disposition

Plaintiff's request for default judgment is denied without prejudice.